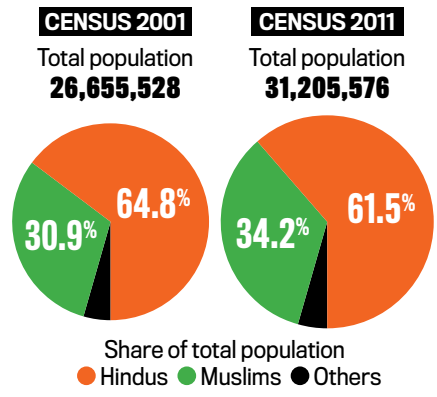
LEGISLATIVE REPRESENTATION IN ASSAM

LOK SABHA
Total number of seats: **14**
Reserved seats for SC & ST: **3**
Muslim Lok Sabha MPs: **2**

ASSEMBLY
Total number of seats: **126**
Reserved seats for SC & ST: **24**
Muslim MLAs: **32**



use of the 2001 Census was challenged in Gauhati High Court on the ground that its data was riddled with discrepancies. The Centre also feared law and order issues in Assam, Arunachal Pradesh, Manipur and Nagaland and the Delimitation Act of 2002 was amended on January 14, 2008, to empower the president to postpone the exercise in these four states. On February 28, 2020, then president Ram Nath Kovind rescinded the 2008 deferment order, thereby clearing the decks for delimitation in these four states.

Delimitation is conducted by a delimitation commission, comprising a former judge of the Supreme Court as chairperson, chief election commissioner or another election commissioner nominated by the CEC and state election commissioner of the concerned state. In 2008, Parliament decided that instead of creating another delimitation commission, the ECI would conduct the exercise in the four states. The RPA was amended, and Section 8A introduced, to give the ECI's new assignment legal validity. Earlier, the ECI was charged with redrawing the boundaries of constituencies in Delhi (1992) and Uttarakhand (2000). While the decisions of the delimitation commission cannot be challenged in court, the decisions of the ECI will be subject to legal scrutiny.

As per norms, existing boundaries, facility of communication and public convenience are considered while determining constituencies' boundaries in delimitation and as far as practicable, all assembly constituencies in a district are confined within its territorial limits.

In an intriguing decision, just a day before the ban came into force from January 1, the Assam cabinet decided to re-merge four newly-created districts—Tamulpur, Hojai, Biswanath and Bajali—with the districts they were carved out from and redraw boundaries in 14 other places. Opposition parties see in this a manipulation by the Sarma-led BJP government in order to benefit Hindu voters. Sarma claimed that this "harsh decision was taken" for the "betterment" of the state as "district boundary plays a key role" in delimitation.

ASSAM'S RE-MERGER OF FOUR DISTRICTS, SAY OPPOSITION CRITICS, IS A MOVE THAT WILL BENEFIT HINDU VOTERS

The indigenous Assamese waits for a "larger gain" through this re-merger. There is a widespread perception that illegal immigrants from Bangladesh, mostly Bangla-speaking Muslims, have changed the demography of Assam, making them deciding factors in 35 of the 126 assembly seats and six of the 14 Lok Sabha constituencies. The National Register of Citizenship (NRC), updated for Assam in 2019, found 1.9 million people ineligible for citizenship, but this draft has now been rejected by all stakeholders, including the BJP. People now see delimitation as a way to deny suspected immigrants the opportunity to swing election results. Indeed, Sarma has said, "We were not successful with the NRC...delimitation is the last resort to use the demographic change in Assam and in the assembly to the advantage of Assamese people." Earlier in 2021, in the run-up to the assembly polls, he was more categorical: "Delimitation is a must so that 110 seats are for indigenous people."

Of the 32 Muslim MLAs in Assam, eight come from Barpeta and Nagaon. The creation of Bajali and Hojai respectively out of these districts would have further increased this number, suspect many. Both districts have immense social, emotional and religious significance, as they are home to the two biggest monasteries set up by Srimanta Shankardev and Mahapurush Madhabdev, the socio-cultural father figures of the Assamese people. Both districts, earlier Hindu-dominated, have seen massive demographic changes, primarily because of an influx since 1971.
In fact, many critics suspect that the decision to stick to the 2001 Census was taken because several reserved constituencies are likely to lose their status, since 2011 Census data shows Muslims now dominate these seats. Assam recorded the highest growth in Muslim population in India between 2001 and 2011.

Irrespective of the BJP's assertions and fears of the Opposition, delimitation is unlikely to result in a massive readjustment of seats. This has indirectly been acknowledged by the CM himself when he said that there should be a debate on why only population is considered as the basis of delimitation. That's perhaps a preparation for an escape route if there is a gap between the actual results after delimitation and the promises made. ■